

24STCV26316 24STCV26316

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Case Number: 24STCV26316 Hearing Date: July 6, 2026 Dept: 617

Dept.

617

Date:

7-6-26

Case

#: 24STCV26316

Trial

Date: 10-5-26

LEAVE TO FILE CROSS-COMPLAINTS

MOVING

PARTY: Defendants, Decron Properties Corp., NF Poinsettia Investors, LP, and
Poinsettia Place Apartments Investors, LLC

RESPONDING

PARTY: Plaintiff, Scott Levine

RELIEF

REQUESTED

Motion

for Leave to File Cross-Complaints

SUMMARY

OF ACTION

Plaintiff

Scott Levine was stabbed inside his apartment. The alleged attacker, Defendant Joshua Holman, entered Levine's apartment by unlatching a malfunctioning lock on a sliding glass door. Levine claims Holman was an unauthorized guest of a tenant in a neighboring apartment and that the owners/managers of the property, Defendants Decron Properties Corp., NF Poinsettia Investors, LP, and Poinsettia Place Apartments Investors, LLC, were aware of his presence. On October 9, 2024, Levine filed a complaint for premises negligence against Defendants. Levine additionally asserts claims for battery and intentional infliction of emotional distress against Holman. Default was entered against Holman on September 24, 2025.

On

October 18, 2024, Plaintiff William Swain, Jr. filed his own complaint against Defendants for injuries he sustained when he confronted Holman and was also stabbed. The cases were consolidated on July 11, 2025. Default was entered against Holman as to Swain's complaint on June 25, 2026.

RULING: Denied.

Defendants Decron Properties, NF Poinsettia Investors, and Poinsettia Place Apartments Investors move for leave to file cross-complaints in indemnity against Holman and the tenants who allegedly housed him. They contend filing the cross-complaints became necessary after the tenants' insurer failed to respond to their tenders of defense and indemnity. Levine opposes the motion, arguing that granting leave would prejudice him due to further delay of trial. The Court agrees with Levine and Defendants' motion is denied.

A

motion for leave to amend must comply with the requirements set forth in California Rules of Court, rule 3.1324, which states as follows:

(a) Contents of motion

A

motion to amend a pleading before trial must:

(1)

Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2)

State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3)

State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A

separate declaration must accompany the motion and must specify:

(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4)

The reasons why the request for amendment was not made earlier.

Dilatory delays and prejudice to the opposing parties is a valid ground for denial. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-88.)

Leave

to amend is generally liberally granted. (Code Civ. Proc., § 473, subd. (a); *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296.) The Court will not generally consider the validity of the proposed amended pleading in ruling on a motion for leave, instead deferring such determinations for a demurrer or motion to strike, unless the proposed amendment fails to state a valid claim as a matter of law. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App.3d 1045, 1048; *California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-81 disapproved of on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390.)

Defendants'

delay in seeking to file the cross-complaints prejudices Levine. Defendants have known since the filing of Plaintiffs' complaints in 2024 that they were alleging Holman was an unauthorized guest of the tenants. [Levine Compl. ¶ 6; Swain Compl. ¶ 2.] They also knew that under the lease agreement the tenants agreed to indemnify and defend Decron for claims resulting from the misconduct of their guests and that the tenants had to maintain a renter's insurance policy listing Decron and the Poinsettia parties as "additional insureds" or "interested parties." [Mot. at pp. 2-3.] But they did not tender defense and indemnity until a year later in October 2025 and did not seek leave to file their cross-complaints until January 30, 2026. [D'Argenio Decl. ¶ 4.] Adding the new parties at this point would further delay the approaching October 5, 2026 trial because discovery will need to be conducted and the parties must be provided sufficient time to enable them to exercise their right to bring a motion for summary judgment. (*Polibrid Coatings, Inc. v. Superior Court* (2003) 112 Cal.App.4th 920, 923-24 [belatedly-added defendant should be given "at least enough time for that party to reasonably complete discovery and bring a summary judgment motion"].)

Plaintiffs'

discovery responses and the deposition of the premise's community manager do not excuse the delay in seeking leave. Defendants contend that Levine's December 2025 discovery responses referring to Holman as an "illegal tenant" indicate a change in Plaintiffs' theory of liability and create new potential liability without explaining how so. [D'Argenio Suppl. Decl. ¶¶ 4-5, Ex. 2.] They also state that the deposition of the community manager revealed new facts showing "a potentially longer relationship between Unit 424 Cross-Defendants and Holman," but they do not elaborate why these facts are relevant or justify leave. [Reply at p. 5; D'Argenio Suppl. Decl. ¶ 6.] Defendants have therefore

not shown any new development justifying the delay leave to file their cross-complaints would entail. Under these circumstances, should Defendants be found liable, the pursuit of indemnity claims through a separate action would satisfy their interests and avoid prejudice to Plaintiffs. (See *People ex rel. Dept. of Transportation v. Superior Court* (1980) 26 Cal.3d 744, 748 [equitable indemnity action accrues when “tort defendant pays a judgment or settlement as to which he is entitled to indemnity”]; *Valley Crest Landscape Development, Inc. v. Mission Pools of Escondido, Inc.* (2015) 238 Cal.App.4th 468, 481 [same for express indemnity claim].)

Defendants’
motion is therefore denied.

Defendants
to give notice.